

Matter Number:	WC / 2024 / 227
----------------	-----------------

Form 24 - Notice to admit facts

Industrial Relations Act 2016, section 989
Industrial Relations (Tribunals) Rules 2011, rules 41, 49, 108 and 113

Applicant/Appellant:	Cory Lea Shepherd
v	
Respondent:	Workers' Compensation Regulator
To:	The Workers' Compensation Regulator Attention: Ms Renee Matheson, Senior Appeals Officer

Take notice that the **appellant** in this proceeding proposes to prove the facts specified below, and if you do not within **14 days** serve a notice on the appellant disputing the facts, you are taken to admit, for this proceeding only, the facts specified in this notice.

NOTE - TRANSCRIBE ONTO THE OFFICIAL FORM. This page reproduces the layout of the approved Form 24 so the schedule can be settled and checked. Download the current Form 24 from the Commission's website and transcribe the schedule into it before service. Sign, print your name, state the office held ("Appellant") and date it.

SCHEDULE OF FACTS - SECOND NOTICE TO ADMIT FACTS

Industrial Relations (Tribunals) Rules 2011, rule 49

WC/2024/227 | Cory Lea Shepherd (Appellant) v Workers' Compensation Regulator (Respondent)

DRAFT - 20 August 2026. Schedule of facts for insertion in the approved Form 24. **Verify each quotation against the source before service.** The Source column is for the Appellant's own verification and is DELETED BEFORE SERVICE. Sections are headings only and are not numbered items.

TAKE NOTICE that the Appellant proposes to prove the facts specified below, and that if the Respondent does not, within 14 days after receiving this notice, serve a notice on the Appellant disputing those facts, the Respondent is taken to admit them for this proceeding only.

No.	Fact to be admitted	Admit / Deny	Source (delete before service)
PART ONE - PRELIMINARY: THE ROLE, THE EMPLOYMENT AND THE HOURS			
A	THE ROLE, AND WHAT IT REQUIRED		
1	Metro South Hospital and Health Service produced a role description for the position of Administration Officer, Switchboard Services, Logan Hospital, which states the classification as "A03".		Role description, Administration Officer, Switchboard Services (A03), Logan Hospital - produced by Metro South Hospital and Health Service - Annexure A Tab 1
2	That role description states: "The occupant of this position is required to work continuous shift work over the full 24-hour period, 7 days a week".		Role description, Administration Officer, Switchboard Services (A03), Logan Hospital - produced by Metro South Hospital and Health Service - Annexure A Tab 1
3	That role description states: "This position reports to the Switchboard Manager, Corporate Services, Logan Hospital".		Role description, Administration Officer, Switchboard Services (A03), Logan Hospital - produced by Metro South Hospital and Health Service - Annexure A Tab 1
4	That role description names the contact for the position as "Chloe Taylor".		Role description, Administration Officer, Switchboard Services (A03), Logan Hospital - produced by Metro South Hospital and Health Service - Annexure A Tab 1
5	That role description states, as a key responsibility: "Maintain call queues to minimum at all times".		Role description, Administration Officer, Switchboard Services (A03), Logan Hospital - produced by Metro South Hospital and Health Service - Annexure A Tab 1
6	That role description states, as a key responsibility: "Collate information and maintain Omnivista database and SharePoint to ensure information held within Switchboard Services is accurate and appropriate".		Role description, Administration Officer, Switchboard Services (A03), Logan Hospital - produced by Metro South Hospital and Health Service - Annexure A Tab 1

No.	Fact to be admitted	Admit / Deny	Source (delete before service)
7	That role description states, as a key responsibility: "Provide a service to support hospital staff in the allocation, coordination, and fault repair of all pager units for the hospital. This includes allocating pagers to hospital staff and submitting paging units for repair, maintaining database and registers with accurate and current information".		Role description, Administration Officer, Switchboard Services (AO3), Logan Hospital - produced by Metro South Hospital and Health Service - Annexure A Tab 1
8	That role description states, as a key responsibility: "Participate in the Emergency Response process by receiving emergency response notifications and distributing them to the appropriate response groups, dependent on the category of emergency, as per emergency code procedures, strictly adhering to protocols and timeframes".		Role description, Administration Officer, Switchboard Services (AO3), Logan Hospital - produced by Metro South Hospital and Health Service - Annexure A Tab 1
9	That role description states, as a key responsibility: "Maintain discretion and exercise judgement where necessary to resolve problems within the scope of your role; in situations where precedence have not been set and procedures not defined".		Role description, Administration Officer, Switchboard Services (AO3), Logan Hospital - produced by Metro South Hospital and Health Service - Annexure A Tab 1
10	That role description states, as a key responsibility: "The ability to multitask and operate under pressure, particularly where high volume call traffic is concerned".		Role description, Administration Officer, Switchboard Services (AO3), Logan Hospital - produced by Metro South Hospital and Health Service - Annexure A Tab 1
11	That role description states, as a key responsibility: "Ability to work effectively as an individual with limited supervision to meet deadlines and establish work priorities, and work as a member of a multi-disciplinary team in a changing environment".		Role description, Administration Officer, Switchboard Services (AO3), Logan Hospital - produced by Metro South Hospital and Health Service - Annexure A Tab 1
12	That role description states, as a key responsibility: "Follow defined service quality standards, occupational health and safety policies and procedures relating to the work being undertaken to ensure high quality, safe services and workplaces".		Role description, Administration Officer, Switchboard Services (AO3), Logan Hospital - produced by Metro South Hospital and Health Service - Annexure A Tab 1
13	That role description states, under mandatory requirements: "The position is a continuous shift working role. You must be able to work a roster which covers multiple shifts over a 24/7 period".		Role description, Administration Officer, Switchboard Services (AO3), Logan Hospital - produced by Metro South Hospital and Health Service - Annexure A Tab 1
14	Metro South Hospital and Health Service approved three movement forms recording changes to the Appellant's working hours, dated 27 February 2026, 17 April 2026 and 9 June 2026, each approved by Mr Scott Hughes as delegate.		Movement forms recording approved changes to working hours, approved by Mr S Hughes as delegate - Annexure A Tabs 17-19
15	Each of those three movement forms records the Appellant's shift arrangements as "Continuous Shift Worker".		Movement forms recording approved changes to working hours, approved by Mr S Hughes as delegate - Annexure A Tabs 17-19

No.	Fact to be admitted	Admit / Deny	Source (delete before service)
16	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Appellant ceased to be a continuous shift worker at any time before 18 June 2024.		Respondent's amended statement of facts and contentions, 13 May 2026
B	THE APPELLANT'S EMPLOYMENT, AND THE 17 JUNE 2020 AGREEMENT		
17	The Appellant signed an agreement allowing an 8-hour break between shifts on 17 June 2020.		Respondent's amended statement of facts and contentions, 13 May 2026
18	Review Decision 69983 records the Appellant's submission that the 8-hour agreement "was no longer fit for purpose since your transition from casual employment to full-time".		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision - Annexure A Tab 25
19	That decision records the Appellant's submission that "since your commencement, you have signed new terms and working arrangements as a full-time employee".		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision - Annexure A Tab 25
20	That decision records the employer's confirmation that there had been a "change to your employment contract and adjustments in your working hours" since 17 June 2020.		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision - Annexure A Tab 25
21	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the 8-hour agreement of 17 June 2020 was reviewed, re-executed or re-confirmed at any time between 17 June 2020 and 18 March 2024.		Respondent's amended statement of facts and contentions, 13 May 2026
22	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Appellant was informed, at any time before 1 May 2024, that the 8-hour agreement of 17 June 2020 could be terminated by him.		Respondent's amended statement of facts and contentions, 13 May 2026
23	Review Decision 69983 records that Ms Sandra Johnstone was the Switchboard Line Manager as at 8 December 2021.		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision - Annexure A Tab 25
24	That decision records that Ms Danielle Cook was the "previous Switchboard Manager", and that "Ms Taylor was subsequently appointed to the Switchboard Manager role".		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision - Annexure A Tab 25
25	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Ms Taylor was the Switchboard Manager on 17 June 2020.		Respondent's amended statement of facts and contentions, 13 May 2026
C	THE HOURS THE APPELLANT SOUGHT, AND OBTAINED		
26	On 7 August 2023 at 12:21 pm the Appellant sent an email to Ms Chloe Taylor, Ms Tammy Reese, Ms Patricia Conaghan and Ms Tracey Smith, marked of High importance, which states: "Furthermore, to meet the demands and the additional hours of the department both Patricia Conaghan and I would like to formally adhoc an additional 2 shifts per fortnight."		Respondent's disclosure from witness conferencing (T Reese) - Annexure A Tab 2
27	That email sets out clause 11.7 of the applicable agreement, headed "Additional Permanent Hours for Part-time Employees".		Respondent's disclosure from witness conferencing (T Reese) - Annexure A Tab 2
28	On 8 August 2023 at 6:06 pm the Appellant sent an email to Ms Reese which states: "I can confirm that I will be in tomorrow 0700-1500 9th August. I was also looking to pick up another shift if possible."		Respondent's disclosure from witness conferencing (T Reese) - Annexure A Tab 2
29	On 8 August 2023 at 4:15 pm Ms Reese sent an email to the Appellant which states: "can I ask were you looking for another shift on top of those 8 to replace the shift missed today also?"		Respondent's disclosure from witness conferencing (T Reese) - Annexure A Tab 2
30	On 31 August 2023 the Appellant provided to Ms Taylor a written application headed "Request to Increase Working Hours to Full Time Rotational Roster".		Respondent's disclosure from witness conferencing (T Reese) - Annexure A Tab 4

No.	Fact to be admitted	Admit / Deny	Source (delete before service)
31	That application states: "I have also expressed my willingness to take on additional night shifts as part of the roster and advocacy to become a union representative for the switchboard department."		Respondent's disclosure from witness conferencing (T Reese) - Annexure A Tabs 2, 3, 4, 7, 8A
32	That application of 31 August 2023 records the Appellant's intention to become the Switchboard union delegate, in the same sentence as his willingness to take on additional night shifts.		Respondent's disclosure from witness conferencing (T Reese) - Annexure A Tab 4
33	On 4 September 2023 the Appellant sent an email to Ms Reese which states: "I confirm that I am able and willing to work any roster that is presented to me, including the current schedule with full 24-hour availability."		Respondent's disclosure from witness conferencing (T Reese) - Annexure A Tab 3
34	That email states: "I have no issues with shift work."		Respondent's disclosure from witness conferencing (T Reese) - Annexure A Tabs 2, 3, 4, 7, 8A
35	That email attached a draft roster spreadsheet prepared by the Appellant.		Respondent's disclosure from witness conferencing (T Reese) - Annexure A Tabs 2, 3, 4, 7, 8A
36	On 8 September 2023 at 11:42 am Ms Reese sent an email to the Appellant which states: "I am glad to hear things seem to be going well with Chloe and I am also glad to hear you applied for the additional shifts through the recent EOI."		Respondent's disclosure from witness conferencing (T Reese) - Annexure A Tab 3
37	On 27 September 2023 at 1:52 pm Ms Taylor sent an email to the Appellant with the subject "Approved - Permanent Full Time FTE" which states: "Just giving you an update on your application for Permanent Fulltime hours, I am very pleased to advise you that this has been approved."		Email of Ms C Taylor, 27 September 2023 - Annexure A Tab 5
38	That email states: "happy to commence Full-time hours from the 16th October 2023".		As above
PART TWO - STRESSOR 1			
D	STRESSOR 1(a) - THE DATABASE, AND THE DIRECTIVES ISSUED WITHOUT CONSULTATION		
39	On 18 July 2023 at 12:56 pm Ms Ellen Stibbard, Switchboard Telecommunications Coordinator, sent an email to the Appellant and the Switchboard team, subject "Hello & Update", which states: "My current role is a project role for the Switchboard team. It is a temporary position that predominantly focuses on fixing up the database that switchboard utilises."		Email of Ms E Stibbard, 18 July 2023, produced under Tab 1 of the Stressor 1(a) particulars bundle served 11 August 2026 - Annexure A Tab 1A
40	That email states: "While I am fixing up the database and all of its entries, I will be removing everyone's access to the database."		As above
41	That email states that Ms Stibbard's working hours were "every Tuesday and second Monday, 8:00 - 16:00".		As above
42	That email states that a person wanting an entry updated was to "contact me directly, either via email or extension".		As above
43	That email states that if an entry was needed on a day Ms Stibbard was not present and was urgent, it was to be sent to Ms Taylor.		As above
44	That email states that a request made "after hours (overnights, on the weekend or public holiday)" would "have to wait until either Chloe or myself are back".		As above
45	That email states: "I have also removed the Contact & Number Changes book out of the room, as I would prefer, for now, to be sent all changes to my email."		As above
46	Review Decision 69983 records: "Ms Ellen Stibbard, Switchboard Telecommunications Coordinator, emailed the staff members on 18 July 2023 to provide an update with respect to her role."		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision - Annexure A Tab 25

No.	Fact to be admitted	Admit / Deny	Source (delete before service)
47	That decision records: "She explained her role was a project role, which was a temporary position that focused on fixing the database used by the switchboard."		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision - Annexure A Tab 25
48	That decision records: "She informed that while she fixed it, she would be removing everyone's access to it, and asked for anyone who needed to amend, add or remove entries, to directly contact her or Ms Taylor."		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision - Annexure A Tab 25
49	Review Decision 69983 records: "On 19 April 2024, Ms Taylor emailed the team and expressed that due to errors being made with respect to data entry, a new process was to be followed which included more checks to ensure accuracy of data entry."		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision - Annexure A Tab 25
50	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the role description for the position of Administration Officer, Switchboard Services was amended at any time after 18 July 2023.		Respondent's amended statement of facts and contentions, 13 May 2026
51	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that access to the database used by the Switchboard was restored to the Appellant at any time before 18 June 2024.		Respondent's amended statement of facts and contentions, 13 May 2026
52	On 16 June 2023 the Appellant wrote raising, among other workplace issues: "No consultation of the team members or the department when making major changes such as additional shift... commence/finish [times]."		Affidavit of the Appellant (Form 20) filed 23 June 2026
53	On 3 May 2024 at 3:06 pm Vivian Kwok, MASPER Registrar, sent an email to Ms Taylor, copied to Dr Pan Jane Wong, with the subject "Switchboard issues 2nd and 3rd May 2024", which states: "I've been requested to email you with the list of switchboard issues from yesterday and today".		MASPER register email records, 9-15 May 2024, produced under Tab 3 of the Stressor 1(a) particulars bundle served 11 August 2026 - Annexure A Tab 8B
54	That email lists five occasions on 2 and 3 May 2024 on which a call was routed by the Switchboard to a number other than the number sought, being 2 May 2024 at 14:47, and 3 May 2024 at 10:00 am, 10:22 am, 11:43 am and 14:46.		MASPER register email records, 9-15 May 2024, produced under Tab 3 of the Stressor 1(a) particulars bundle served 11 August 2026 - Annexure A Tab 8B
55	That email records of the occasion at 14:46 on 3 May 2024: "MET call team called x5290 asking where MET call was located 'VHUB' - switchboard could not tell them where VHUB was. Had to be redirected by MASPER".		MASPER register email records, 9-15 May 2024, produced under Tab 3 of the Stressor 1(a) particulars bundle served 11 August 2026 - Annexure A Tab 8B
56	On 8 May 2024 at 5:28 pm Vivian Kwok sent a further email to Ms Taylor, copied to Dr Wong, with the subject "Re: Switchboard issues 5 May, 7 May, and 8 May", which states: "Here are the switchboard issues 5th May to 8th of May".		MASPER register email records, 9-15 May 2024, produced under Tab 3 of the Stressor 1(a) particulars bundle served 11 August 2026 - Annexure A Tab 8B
57	That further email lists four occasions, being 5 May 2024 at 14:45, 7 May 2024 at 0745, and 8 May 2024 at 8:53 am and 9:59 am.		MASPER register email records, 9-15 May 2024, produced under Tab 3 of the Stressor 1(a) particulars bundle served 11 August 2026 - Annexure A Tab 8B
58	That further email records of the occasions on 8 May 2024 that a call was "incorrectly put through to MASPER" on each occasion.		MASPER register email records, 9-15 May 2024, produced under Tab 3 of the Stressor 1(a) particulars bundle served 11 August 2026 - Annexure A Tab 8B

No.	Fact to be admitted	Admit / Deny	Source (delete before service)
59	The email of Vivian Kwok of 8 May 2024 was sent on the fifth calendar day after her email of 3 May 2024.		Arithmetic
60	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any communication was sent to Logan Switch or to the Switchboard staff concerning the occasions reported by Vivian Kwok at any time between 3 May 2024 and 9 May 2024.		Respondent's amended statement of facts and contentions, 13 May 2026
61	Ms Taylor's email to Logan Switch of 9 May 2024 at 10:15 am states: "I have included below email trail for your reference. There have been many ongoing issues raised by the MASPER and the medical department about calls being transferred to the wrong medical teams."		MASPER register email records, 9-15 May 2024, produced under Tab 3 of the Stressor 1(a) particulars bundle served 11 August 2026 - Annexure A Tab 8B
62	Review Decision 69983 records that in an email dated 23 August 2023 Ms Taylor "noted her start time would range between 6:00 to 9:00 am, and her finish time would range between 2:00 to 5:00 pm".		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision - Annexure A Tab 25
63	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Ms Taylor stated fixed office hours to the Switchboard staff at any time between 23 August 2023 and 17 May 2024.		Respondent's amended statement of facts and contentions, 13 May 2026
64	The occasions reported by Vivian Kwok on 3 and 8 May 2024 occurred while the after-hours on-call arrangement notified by Ms Taylor on 15 April 2024 was in force.		As set out at the paragraphs concerning those emails
65	On 9 May 2024 at 9:20 am Ms Taylor sent an email to Vivian Kwok, MASPER Registrar, and Dr Pan Jane Wong, subject "RE: Switchboard issues 5 May, 7 May, and 8 May", which states: "Can I please confirm your business hours so we can have this for our reference, it is not provided on the rosters. I have noticed your dect phone number #5997 is currently switched off."		MASPER register email records, 9-15 May 2024, produced under Tab 3 of the Stressor 1(a) particulars bundle served 11 August 2026 - Annexure A Tab 8B
66	On 9 May 2024 at 10:15 am Ms Taylor sent an email to Logan Switch, copied to Switchboard staff including the Appellant, subject "MASPER process", directing that "all calls that switch transfer to the MASPER phone #5223 are being introduced".		MASPER register email records, 9-15 May 2024, produced under Tab 3 of the Stressor 1(a) particulars bundle served 11 August 2026 - Annexure A Tab 8B
67	On 21 May 2024 Ms Reese asked the Appellant to identify the directives about which he had consultation concerns.		Affidavit of the Appellant (Form 20) filed 23 June 2026
68	On 15 April 2024 at 12:39 pm Ms Taylor sent an email to Logan Switch, copied to Ms Reese and to Switchboard staff including the Appellant, with the subject "Afterhours Oncall Process - Switchboard".		Email of Ms C Taylor, 15 April 2024, 12:39 pm, "Afterhours Oncall Process - Switchboard", Annexure A Tab 6
69	That email states: "Process during office hours remains the same, please contact myself through switch/office or mobile unless otherwise advised."		Email of Ms C Taylor, 15 April 2024, 12:39 pm, "Afterhours Oncall Process - Switchboard", Annexure A Tab 6
70	That email states: "This new process is effective from today."		Email of Ms C Taylor, 15 April 2024, 12:39 pm, "Afterhours Oncall Process - Switchboard", Annexure A Tab 6
71	That email states: "You will see that Ellen and myself have added Afterhours on call, the days that are highlighted in purple show who is on call after hours."		Email of Ms C Taylor, 15 April 2024, 12:39 pm, "Afterhours Oncall Process - Switchboard", Annexure A Tab 6

No.	Fact to be admitted	Admit / Deny	Source (delete before service)
72	Ms Taylor signed that email as "A/Switchboard Manager".		Email of Ms C Taylor, 15 April 2024, 12:39 pm, "Afterhours Oncall Process - Switchboard", Annexure A Tab 6
73	Ms Taylor's email to all Switchboard staff of 17 May 2024 at 9:30 am states: "My office hours can vary due to having to take my girls to school in the morning, on the days that I do have school drop off I always let switch know that I will be in later between 0800-830am. Otherwise my hours are from 06:30-14:30."		Respondent's disclosure from witness conferencing (C Taylor) - Annexure A Tab 9
74	That email states: "Moving forward so communication is clear for the team, I will be sending an email to switch to advise of any change to my office hours for the week."		Respondent's disclosure from witness conferencing (C Taylor) - Annexure A Tabs 5, 9, 9C, 10, 13, 14
75	The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 16(b)(iv): "Ms Taylor then raised this as an issue with Ms Reese at 1:20 pm".		Respondent's amended statement of facts and contentions, 13 May 2026
76	On 17 May 2024 at 1:20 pm Ms Taylor sent an email to Ms Adriana McNamee with the subject "FW: Office Hours and Departmental Directives", which states: "when staff call in for any leave to please contact me either via switch, office or my mobile."		Respondent's disclosure from witness conferencing (C Taylor) - Annexure A Tab 9C
77	On 15 May 2024 at 1:15 pm the Appellant sent an email to Ms Taylor and Logan Switch, copied to Switchboard staff, Ms Reese and LBH_HR, with the subject "Office Hours and Departmental Directives", which states: "could you please share your office hours so the entire department can be aware of your regular schedule? There has been some noted inconsistency in your arrival and departure times".		Respondent's disclosure from witnesses (fatigue risk management content) - Annexure A Tab 8
78	That email of the Appellant states: "please ensure that any directives and changes within the department is made in consultation with the team to ensure that any concerns can be appropriately addressed."		Respondent's disclosure from witnesses (fatigue risk management content) - Annexure A Tabs 8, 9A, 9B, 11
79	On 15 May 2024 at 6:23 pm Ms Reese replied to the Appellant, copied to Ms Taylor and marked of High importance, stating that his email "did not demonstrate our iCARE2 value of Respect and did not comply with our Code of conduct".		Respondent's disclosure from witnesses (fatigue risk management content) - Annexure A Tab 9A
80	That reply of Ms Reese asked the Appellant to retract his email.		Respondent's disclosure from witnesses (fatigue risk management content) - Annexure A Tab 9A
81	On 15 May 2024 at 7:09 pm the Appellant replied to Ms Reese stating: "Requesting clarity on business hours is a reasonable question, especially when no one in the department can provide a definitive answer in response to directives to contact Chloe during office hours."		Respondent's disclosure from witnesses (fatigue risk management content) - Annexure A Tab 9A
82	On 21 May 2024 at 2:53 pm Ms Reese replied to the Appellant stating: "With regards to your concerns about having more clarity as to what are Chole's business hours I will follow up on the issues raised."		Respondent's disclosure from witnesses (fatigue risk management content) - Annexure A Tab 9B
83	That reply of Ms Reese states: "can I ask was there one or more particular changes and/or directives where you had concerns about consultation and communication?"		Respondent's disclosure from witnesses (fatigue risk management content) - Annexure A Tab 9B
84	The email of Ms Taylor to Ms McNamee of 17 May 2024 at 1:20 pm states, of the Appellant's telephone call of 13 May 2024: "I told him I am more than happy to cover his shift and if he was unwell, it would be preferred for him not to come into work."		Respondent's disclosure from witnesses (fatigue risk management content) - Annexure A Tab 9C

No.	Fact to be admitted	Admit / Deny	Source (delete before service)
85	That email of Ms Taylor states: "I sent an email (attached) to advise Cory again of the call process and a query about his leave. I also sent a follow up text, advised by the last HR rep to also follow up with a text to Cory".		Respondent's disclosure from witnesses (fatigue risk management content) - Annexure A Tabs 8, 9A, 9B, 11
86	That email of Ms Taylor records that on each of 13, 14 and 15 May 2024 the Appellant notified his unavailability by telephoning the Switchboard.		Respondent's disclosure from witnesses (fatigue risk management content) - Annexure A Tabs 8, 9A, 9B, 11
87	No document recording that Ms McNamee sought the Appellant's account of the matters described in Ms Taylor's email of 17 May 2024 at 1:20 pm has been identified or disclosed in the Respondent's disclosed material presently before the Commission.		The Respondent's disclosure in this proceeding
E	STRESSOR 1(a) - THE DELAY IN COMMUNICATION AND THE MATTERS RAISED IN MAY 2024		
88	On 15 May 2024 at 11:47 am Ms Sue Marriott, Administration Officer, Integrated Respiratory Service, sent an email to Logan Switch, marked of High importance, which states: "Could you please amend your number registry/directory to show #8768 belongs to the Integrated Respiratory Service... We are not Respiratory Medical OPD and we do not have any doctors working out of this area."		Stressor 1(a) particulars bundle served on the Respondent 11 August 2026, Tab 4; and the Respondent's own disclosure - Annexure A Tab 11
89	On 20 May 2024 at 11:03 am Ms Marriott sent a further email to Logan Switch, marked of High importance, which states: "Just a courtesy reminder, we continue to get calls put through to us for Respiratory Medical Outpatients... we can not help patients or other clinical staff with OPD issues."		Stressor 1(a) particulars bundle served on the Respondent 11 August 2026, Tab 4; and the Respondent's own disclosure - Annexure A Tab 11
90	The Appellant's email of 20 May 2024 at 2:05 pm was sent three hours and two minutes after the email of Ms Marriott of that day at 11:03 am.		Arithmetic
91	The Appellant's email of 20 May 2024 at 2:05 pm was sent five days, two hours and eighteen minutes after the first email of Ms Marriott of 15 May 2024 at 11:47 am.		Arithmetic
92	Ms Taylor's reply of 20 May 2024 at 4:30 pm was sent two hours and twenty-five minutes after the Appellant's email of that day at 2:05 pm.		Arithmetic
93	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Mr Parry communicated with Ms Marriott, or with the Integrated Respiratory Service, on 20 May 2024.		Respondent's amended statement of facts and contentions, 13 May 2026
94	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the document "Outpatients Department - Clinic contact Details" was amended at any time on or before 20 May 2024.		Respondent's amended statement of facts and contentions, 13 May 2026
95	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Switchboard staff were notified, at any time on or before 20 May 2024, of the modifications made to the document "Outpatients Department - Clinic contact Details" on 22 February 2024.		Respondent's amended statement of facts and contentions, 13 May 2026
96	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Appellant was rostered to work after 2:05 pm on 20 May 2024.		Respondent's amended statement of facts and contentions, 13 May 2026

No.	Fact to be admitted	Admit / Deny	Source (delete before service)
97	Ms Taylor's reply of 20 May 2024 at 4:30 pm states that the matter had been discussed "this morning", being the morning of 20 May 2024.		Stressor 1(a) particulars bundle served on the Respondent 11 August 2026, Tab 4; and the Respondent's own disclosure - Annexure A Tab 11
98	No document created on 20 May 2024 recording the discussion referred to in that reply has been identified or disclosed in the Respondent's disclosed material presently before the Commission.		The Respondent's disclosure in this proceeding
99	The email of Ms Marriott of 20 May 2024 at 11:03 am was sent on the fifth calendar day after her email of 15 May 2024 at 11:47 am.		Stressor 1(a) particulars bundle served on the Respondent 11 August 2026, Tab 4; and the Respondent's own disclosure - Annexure A Tab 11
100	The office hours stated by Ms Taylor in her email of 17 May 2024 at 9:30 am concluded at 2:30 pm.		Respondent's disclosure from witness conferencing (C Taylor) - Annexure A Tab 9
101	On 20 May 2024 at 2:05 pm the Appellant sent an email to Ms Taylor, marked of High importance, which states: "switchboard staff may not be aware of the clinics due to modifications to the Document: Outpatients Department - Clinic contact Details. on the 22nd of February 2024. I recommend a modification and review of the document."		Stressor 1(a) particulars bundle served on the Respondent 11 August 2026, Tab 4; and the Respondent's own disclosure - Annexure A Tab 11
102	That email of the Appellant was sent within the office hours Ms Taylor had stated to all Switchboard staff on 17 May 2024.		Respondent's disclosure from witness conferencing (C Taylor) - Annexure A Tabs 5, 9, 9C, 10, 13, 14
103	That email of the Appellant was sent from the Logan Switch account.		Stressor 1(a) particulars bundle served on the Respondent 11 August 2026, Tab 4; and the Respondent's own disclosure - Annexure A Tab 11
104	On 20 May 2024 at 4:30 pm Ms Taylor replied to the Appellant, stating: "Thank you for bringing this to my attention however this task was being actioned. I had discussed with Richard this morning about the update of outpatients respiratory/medical."		Stressor 1(a) particulars bundle served on the Respondent 11 August 2026, Tab 4; and the Respondent's own disclosure - Annexure A Tab 11
105	That reply of Ms Taylor states: "Taking note of your recommendation, we can also put the updated procedures out to the team for consultation before implementing."		Stressor 1(a) particulars bundle served on the Respondent 11 August 2026, Tab 4; and the Respondent's own disclosure - Annexure A Tab 11
106	That reply of Ms Taylor was sent two hours after the conclusion of the office hours she had stated to all Switchboard staff on 17 May 2024.		Respondent's disclosure from witness conferencing (C Taylor) - Annexure A Tabs 5, 9, 9C, 10, 13, 14
107	Ms Stibbard's on-call roster email of 13 May 2024 was addressed to the Switchboard team and included Mr Richard Parry among its recipients.		Respondent's disclosure from witnesses (fatigue risk management content) - Annexure A Tab 9

No.	Fact to be admitted	Admit / Deny	Source (delete before service)
108	Ms Taylor's email of 17 May 2024 headed "Switchboard Manager - On call and Hours" included Mr Richard Parry among its recipients.		Respondent's disclosure from witnesses (fatigue risk management content) - Annexure A Tab 9
109	No document recording a communication sent by Ms Taylor to Ms Marriott, or to the Integrated Respiratory Service, on 20 May 2024 has been identified or disclosed in the Respondent's disclosed material presently before the Commission.		The Respondent's disclosure in this proceeding
110	No document recording a communication sent by Mr Parry to Ms Marriott, or to the Integrated Respiratory Service, on 20 May 2024 has been identified or disclosed in the Respondent's disclosed material presently before the Commission.		The Respondent's disclosure in this proceeding
111	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any response was made to the email of Ms Marriott of 20 May 2024 at 11:03 am before 2:05 pm on that day.		Respondent's amended statement of facts and contentions, 13 May 2026
112	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any response was made to the email of Ms Marriott of 15 May 2024 at 11:47 am at any time before 20 May 2024.		Respondent's amended statement of facts and contentions, 13 May 2026
113	On 17 May 2024 at 9:30 am Ms Taylor sent an email to Logan Switch, copied to Ms Reese and to Switchboard staff, which states: "regardless of my start/finish times next week you are to please contact me through the day/afterhours either via switch, office or mobile."		Respondent's disclosure from witness conferencing (C Taylor) - Annexure A Tab 9
F STRESSOR 1(d) - THE SPECIAL PANDEMIC LEAVE APPLICATION OF FEBRUARY 2024			
114	The myHR leave request history for Process Reference 15480560 records: "Employee - Cory Shepherd : created draft", 20.02.2024, 11:24:48.		myHR leave request history for Process Reference 15480560, produced by Metro South Health as Item 11 of the notice of non-party disclosure - Annexure A Tab 28
115	That history records: "Employee - Cory Shepherd : submitted request", 20.02.2024, 11:41:27.		myHR leave request history for Process Reference 15480560, produced by Metro South Health as Item 11 of the notice of non-party disclosure - Annexure A Tab 28
116	That history records: "Reviewer - Chloe Donovan-Taylor : declined request", 21.02.2024, 12:23:43.		myHR leave request history for Process Reference 15480560, produced by Metro South Health as Item 11 of the notice of non-party disclosure - Annexure A Tab 28
117	That history records: "Employee - Cory Shepherd : submitted request", 28.02.2024, 06:07:32.		myHR leave request history for Process Reference 15480560, produced by Metro South Health as Item 11 of the notice of non-party disclosure - Annexure A Tab 28
118	That history records: "Reviewer - Chloe Donovan-Taylor : declined request", 29.02.2024, 09:06:07.		myHR leave request history for Process Reference 15480560, produced by Metro South Health as Item 11 of the notice of non-party disclosure - Annexure A Tab 28

No.	Fact to be admitted	Admit / Deny	Source (delete before service)
119	That history records: "Employee - Cory Shepherd : submitted request", 29.02.2024, 11:07:28.		myHR leave request history for Process Reference 15480560, produced by Metro South Health as Item 11 of the notice of non-party disclosure - Annexure A Tab 28
120	That history records: "Reviewer - Chloe Donovan-Taylor : approved request", 29.02.2024, 11:21:03.		myHR leave request history for Process Reference 15480560, produced by Metro South Health as Item 11 of the notice of non-party disclosure - Annexure A Tab 28
121	That history records: "Manager - Tammy Reese : approved request", 01.03.2024, 16:05:08.		myHR leave request history for Process Reference 15480560, produced by Metro South Health as Item 11 of the notice of non-party disclosure - Annexure A Tab 28
122	That history records the Appellant as having submitted the request on three occasions.		myHR leave request history for Process Reference 15480560, produced by Metro South Health as Item 11 of the notice of non-party disclosure - Annexure A Tab 28
123	That history records Ms Taylor as having declined the request on two occasions.		myHR leave request history for Process Reference 15480560, produced by Metro South Health as Item 11 of the notice of non-party disclosure - Annexure A Tab 28
124	The interval between the submission recorded at 11:07:28 on 29 February 2024 and the approval recorded at 11:21:03 on the same day is thirteen minutes and thirty-five seconds.		Arithmetic
125	The interval between the draft recorded at 11:24:48 on 20 February 2024 and the approval recorded at 16:05:08 on 1 March 2024 is ten days, four hours and forty minutes.		Arithmetic
126	In that history Ms Taylor is identified as "Reviewer" and Ms Reese is identified as "Manager".		myHR leave request history for Process Reference 15480560, produced by Metro South Health as Item 11 of the notice of non-party disclosure - Annexure A Tab 28
127	The Instrument of Human Resource Sub-Delegation, COVID-19 Pandemic Event - Paid Special Pandemic Leave, signed by Ms Noelle Cridland as Health Service Chief Executive and effective as at 5 December 2022, sub-delegates "the power to approve/not approve paid Special Pandemic Leave in accordance with Directives 05/17 and 01/20 respectively, for this pandemic event (COVID-19) only, to a Band 9 delegate".		Instrument of Human Resource Sub-Delegation, COVID-19 Pandemic Event - Paid Special Pandemic Leave, signed by Ms N Cridland, produced by Metro South Health as Item 13 - Annexure A Tab 29

No.	Fact to be admitted	Admit / Deny	Source (delete before service)
128	That Instrument states: "This Instrument does not permit the further sub-delegation of the powers outlined in (a) above."		Instrument of Human Resource Sub-Delegation, COVID-19 Pandemic Event - Paid Special Pandemic Leave, signed by Ms N Cridland, produced by Metro South Health as Item 13 - Annexure A Tab 29
129	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Ms Taylor was a Band 9 delegate at any time in February 2024.		Respondent's amended statement of facts and contentions, 13 May 2026
130	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Ms Reese was a Band 9 delegate at any time in February or March 2024.		Respondent's amended statement of facts and contentions, 13 May 2026
131	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not identify the person who exercised the power sub-delegated by that Instrument in respect of Process Reference 15480560.		Respondent's amended statement of facts and contentions, 13 May 2026
132	The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 14(c): "Ms Taylor asked the appellant to submit a Special Pandemic Leave request via MyHR and attach a statutory declaration or photo evidence of his test".		Respondent's amended statement of facts and contentions, 13 May 2026
133	That amended statement of facts and contentions states at paragraph 14(d): "Ms Taylor did decline the application because on her assessment, the required statutory declaration was not attached to the MyHR submission. Ms Taylor asked the appellant to resubmit".		Respondent's amended statement of facts and contentions, 13 May 2026
134	That amended statement of facts and contentions states at paragraph 14(e): "says that a review indicates that in fact, the attachments were present on the appellant's submission".		Respondent's amended statement of facts and contentions, 13 May 2026
135	That amended statement of facts and contentions states at paragraph 14(f): "says this was a matter of human error by Ms Taylor on the background of high work demands surrounding the management of staff with COVID-19".		Respondent's amended statement of facts and contentions, 13 May 2026
136	Review Decision 69983 records that on 20 February 2024 the Appellant messaged Ms Taylor stating he had tested positive for Covid, and that Ms Taylor "requested that you send it to her so she could submit it in MyHR".		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision - Annexure A Tab 25
137	That decision records that Ms Taylor "noted the statutory declaration you provided was sufficient evidence" and "requested for you to resubmit your leave days".		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision - Annexure A Tab 25
138	That decision records that the Appellant "messaged you were confused about why your amended leave request was declined" and "noted you did everything as required".		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision - Annexure A Tab 25
139	The myHR submissions report produced as Item 11 records a Smart Leave Request with process number 15480560, submitted on 20 February 2024, with an effective date of 20 February 2024, a processing date of 1 March 2024, and a status of "Completed".		myHR submissions report for the Appellant, 1 February to 31 May 2024, produced by Metro South Health as Item 11 of the notice of non-party disclosure - Annexure A Tab 15
140	That report records the initiator of that Smart Leave Request as the Appellant.		myHR submissions report for the Appellant, 1 February to 31 May 2024, produced by Metro South Health as Item 11 of the notice of non-party disclosure - Annexure A Tab 15

No.	Fact to be admitted	Admit / Deny	Source (delete before service)
141	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any other Switchboard employee was required to submit a Special Pandemic Leave request personally through myHR in February 2024.		Respondent's amended statement of facts and contentions, 13 May 2026
G	STRESSOR 1(b) - THE COMMUNICATION BOOK, AND MS TAYLOR'S EMAIL OF 6 JUNE 2023		
142	The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 12(a): "admits that the Ms Taylor did remove pages from the Communication Book on or around 6 June 2023".		Respondent's amended statement of facts and contentions, 13 May 2026
143	That amended statement of facts and contentions states at paragraph 12(b): "says this event was reported from Ms Taylor to Ms Reese on 6 June 2023 via email".		Respondent's amended statement of facts and contentions, 13 May 2026
144	On 6 June 2023 at 4:05 pm Ms Taylor sent an email to Ms Reese with the subject "Fwd: Communication Book Update".		Email of Ms C Taylor to Ms T Reese, 6 June 2023, 4:05 pm, "Fwd: Communication Book Update" - Respondent's disclosure - Annexure A Tab 1B
145	That email states: "I was not aware of who put this entry in at the time but I took it out last week as it was clearly an indirect dig at the team and there is already a procedure to follow with this certain entry."		As above
146	That email states: "I just feel like it's being used as a 'burn book' more than a professional tool that switchboard can use to communicate."		As above
147	Beneath it in the same document is Ms Taylor's email to Logan Switch of 6 June 2023 at 9:57 am, subject "Communication Book Update", copied to Switchboard staff including the Appellant.		As above
148	That email of 9:57 am states: "This is not used to simply put your point across or make any indirect comments towards the team."		As above
H	STRESSOR 1(c) - THE MATTERS RAISED IN AUGUST AND SEPTEMBER 2023, AND THE RESPONSE		
149	The Appellant's email of 7 August 2023 at 12:21 pm states: "Please give me some space and stop with any further communication as I have had enough of it."		Respondent's disclosure from witness conferencing (T Reese) - Annexure A Tab 2
150	On 7 August 2023 at 1:43 pm Ms Taylor replied to the Appellant, copied to Ms Reese and Ms Smith, stating: "My sincere apologies about your rostered Monday 7th 0700-1500 shift, I can confirm this was an oversight."		Respondent's disclosure from witness conferencing (T Reese) - Annexure A Tab 4
151	That email of Ms Taylor states: "Would you like me to roster you off tomorrow Tuesday 8th 0700-1500 to give you the required rest period".		Respondent's disclosure from witness conferencing (T Reese) - Annexure A Tabs 2, 3, 4, 7, 8A
152	On 7 August 2023 at 3:13 pm Ms Reese replied to the Appellant stating: "As Chloe is your current line manager and as such you are required to continue to communicate with Chloe for work related issues, shift concerns, leave, etc."		Respondent's disclosure from witness conferencing (T Reese) - Annexure A Tab 2
153	On 7 August 2023 at 5:11 pm Ms Reese sent an email to Ms Taylor attaching a document titled "Rostered shifts Cory S. past 8 months.xlsx", which states: "can I ask if you can send me an email of your recent communication with Cory about contacting yourself about missed shifts, as I could not find a copy of this email."		Respondent's disclosure from witness conferencing (T Reese) - Annexure A Tab 4
154	On 29 August 2023 at 6:57 pm Ms Reese sent the Appellant an email attaching HR Policy E12 - Individual Employee Grievances, and setting out how a grievance could be submitted.		Respondent's disclosure from witness conferencing (T Reese) - Annexure A Tab 3
155	On 4 September 2023 the Appellant replied to Ms Reese stating: "I have also spoken to Chloe. We are seemingly on the path to working in a beneficial way and hopefully will not need to go through this process."		Respondent's disclosure from witness conferencing (T Reese) - Annexure A Tab 3
156	The Appellant did not submit a grievance under HR Policy E12 in 2023.		Respondent's disclosure from witness conferencing (T Reese) - Annexure A Tab 3

No.	Fact to be admitted	Admit / Deny	Source (delete before service)
I	THE PROCESS FOR NOTIFYING UNAVAILABILITY FOR A ROSTERED SHIFT		
157	On 14 May 2024 at 12:08 pm Ms Taylor sent an email to the Appellant, copied to Ms Reese, with the subject "Sick leave 14.05.24", which states: "in business hours you are to follow the correct process and speak to me directly if its regarding emergent leave, you can contact me either through switch or my office/mobile."		Respondent's disclosure from witness conferencing (C Taylor) - Annexure A Tab 10
158	On 13, 14 and 15 May 2024 the Appellant notified his unavailability for his rostered shift by telephoning the Switchboard.		Respondent's disclosure from witnesses (fatigue risk management content) - Annexure A Tabs 8, 9A, 9B, 11
159	The email of Ms Taylor of 15 April 2024 states that during office hours the Appellant was to contact her "through switch/office or mobile".		Email of Ms C Taylor, 15 April 2024, 12:39 pm, "Afterhours Oncall Process - Switchboard", Annexure A Tab 6
160	The email of Ms Taylor of 14 May 2024 at 12:08 pm states that the Appellant could contact her "either through switch or my office/mobile".		Respondent's disclosure from witness conferencing (C Taylor) - Annexure A Tab 10
161	Each of those two emails identifies the Switchboard as a means by which the Appellant could contact Ms Taylor.		As above
162	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Appellant was informed, at any time before 14 May 2024, that notifying his unavailability by telephoning the Switchboard did not comply with the process required of him.		Respondent's amended statement of facts and contentions, 13 May 2026
J	STRESSOR 1(g) - THE UNION DELEGATE, AND THE CONSULTATION ON ROSTERS		
163	The Consultation outcome - Proposed Rosters for Switchboard Services, Logan Hospital, December 2024, states: "In accordance with Clause 6.2 of the Hospital and Health Service General Employees (Queensland Health) Award - State 2015, agreement between MSH and the union, or MSH and the majority of employees affected must occur prior to changes to a shift roster."		Consultation outcome - Proposed Rosters for Switchboard Services, Logan Hospital, Metro South Health, December 2024 - Annexure A Tab 23
164	That document states: "Agreement is defined as obtaining consent from the majority (50+1%) of affected employees, with all affected employees invited to cast their vote via an online Ballot Form."		Consultation outcome - Proposed Rosters for Switchboard Services, Logan Hospital, Metro South Health, December 2024 - Annexure A Tab 23
165	The Consultation Paper - Proposed Rosters for Switchboard Services, Logan Hospital states: "On 22 July 2021, Metro South Health (MSH) management, affected staff and Together Queensland representatives commenced negotiating a new roster for Switchboard Services, Logan Hospital."		Consultation Paper - Proposed Rosters for Switchboard Services, Logan Hospital, Metro South Health - Annexure A Tab 22
166	That Consultation Paper states: "In August 2024, Switchboard Services, Logan Hospital was realigned from Health Information Management Services (HIMS), MSH to Corporate Services, LBHS, MSH."		Consultation Paper - Proposed Rosters for Switchboard Services, Logan Hospital, Metro South Health - Annexure A Tab 22
167	That Consultation Paper states that the proposed roster "is intended to introduce a more equitable roster for Switchboard Services, Logan Hospital staff".		Consultation Paper - Proposed Rosters for Switchboard Services, Logan Hospital, Metro South Health - Annexure A Tab 22

No.	Fact to be admitted	Admit / Deny	Source (delete before service)
168	That Consultation Paper states that the proposed roster includes: "Redistribution of nights for greater equity based on FTE."		Consultation Paper - Proposed Rosters for Switchboard Services, Logan Hospital, Metro South Health - Annexure A Tab 22
169	That Consultation Paper states that the proposed roster includes: "Rotational roster for predictability and equity to all staff ensuring fair distribution of penalties."		Consultation Paper - Proposed Rosters for Switchboard Services, Logan Hospital, Metro South Health - Annexure A Tab 22
170	That Consultation Paper states that the proposed roster includes: "An additional eight (8) hour shift (0700-1500) on Saturdays, to assist with call volume."		Consultation Paper - Proposed Rosters for Switchboard Services, Logan Hospital, Metro South Health - Annexure A Tab 22
171	That Consultation Paper states that the proposed roster includes: "Extension of the current weekday (Mon-Fri) 0900-1400 five (5) hour shift to a 0700-1500 eight (8) hour shift."		Consultation Paper - Proposed Rosters for Switchboard Services, Logan Hospital, Metro South Health - Annexure A Tab 22
172	The Consultation outcome document states that on 14 November 2024 a consultation document and proposed roster for Switchboard Services, Logan Hospital was released for consultation, and that affected staff, unions and stakeholders were invited to provide feedback by 8 December 2024.		Consultation outcome - Proposed Rosters for Switchboard Services, Logan Hospital, Metro South Health, December 2024 - Annexure A Tab 23
173	That document states that seventeen affected employees were invited to cast a vote, that seventeen votes were received, that fourteen "Yes" votes and three "No" votes were received, and that the proposed rosters were approved with a date effective of 20 January 2025.		Consultation outcome - Proposed Rosters for Switchboard Services, Logan Hospital, Metro South Health, December 2024 - Annexure A Tab 23
174	On 3 November 2025 Mr Heath Moran, Organiser, Together Queensland, sent an email to Ms Carolyn Jeffrey, Ms Patricia Conaghan and the Appellant which states: "Firstly, congratulations to you all on being endorsed to become workplace delegates!"		Email of Mr Heath Moran, Organiser, Together Queensland, 3 November 2025 at 10:57 am - Annexure A Tab 24
175	The Appellant was endorsed as a workplace delegate on or about 3 November 2025.		Email of Mr Heath Moran, Organiser, Together Queensland, 3 November 2025 at 10:57 am - Annexure A Tab 24
176	The period between April 2023, when the Appellant expressed interest in assuming the role of union delegate, and 3 November 2025, when he was endorsed as a workplace delegate, is approximately thirty-one months.		Email of Mr Heath Moran, Organiser, Together Queensland, 3 November 2025 at 10:57 am - Annexure A Tab 24
177	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that agreement under clause 6.2 of the Hospital and Health Service General Employees (Queensland Health) Award - State 2015 was obtained before the rostering of the Appellant's shifts on 17 and 18 March 2024.		Respondent's amended statement of facts and contentions, 13 May 2026
178	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that a ballot of affected employees was conducted before the change to after-hours on-call arrangements notified by Ms Taylor on 15 April 2024.		Respondent's amended statement of facts and contentions, 13 May 2026
PART THREE - STRESSOR 2			
K	STRESSOR 2 - THE PAY CORRECTION, AND THE THREAD "COREY SHEPHERD 388372 PAY ISSUES"		

No.	Fact to be admitted	Admit / Deny	Source (delete before service)
179	The Respondent's disclosure contains an email thread with the subject "Corey Shepherd 388372 Pay issues".		Respondent's disclosure from witness conferencing (Queensland Health Payroll) - Annexure A Tab 12
180	The first message in that thread is dated 3 May 2024, is from PayrollMetroSouth, is addressed to Ms C Taylor, and is copied to the Appellant.		Respondent's disclosure from witness conferencing (Queensland Health Payroll) - Annexure A Tab 12
181	That message is signed "Elaine Grant, Client Service Officer, Metro South Payroll Team, Payroll Transactional Services, Corporate Enterprise Solutions, Corporate Services Queensland Health".		Respondent's disclosure from witness conferencing (Queensland Health Payroll) - Annexure A Tab 12
182	That message states: "Corey has wages top up on fortnight 05.02.24 for 0.95mins as he is under his contracted hours so it is toping up the missing wages from his RDO balance."		Respondent's disclosure from witness conferencing (Queensland Health Payroll) - Annexure A Tab 12
183	That message states: "This will be due to having a 7hr shift on 09.02.24 instead of an 8hr shift. AVAC PRN 15397775."		Respondent's disclosure from witness conferencing (Queensland Health Payroll) - Annexure A Tab 12
184	That message states: "The same has happened for the next fortnight 19.02.24 due to 28.02.24 shift AVAC PRN 15605601 has this shift as 7hrs topping up 0.95 for missing hour."		Respondent's disclosure from witness conferencing (Queensland Health Payroll) - Annexure A Tab 12
185	That message states: "Fortnight 18.03.24 is the opposite and has too many ordinary shifts for the fortnight resulting in wage reduction of 7.55hrs as one of the shifts needs to be overtime."		Respondent's disclosure from witness conferencing (Queensland Health Payroll) - Annexure A Tab 12
186	That message states: "Fortnight 01.04.24 is the same, 0.95hrs over contracted 76hrs needs to be overtime."		Respondent's disclosure from witness conferencing (Queensland Health Payroll) - Annexure A Tab 12
187	That message states: "Please submit an AVAC to correct these shifts for each fortnight so Cory is paid corrected and his RDO balance will then be amended."		Respondent's disclosure from witness conferencing (Queensland Health Payroll) - Annexure A Tab 12
188	The thread contains a message dated 10 May 2024 at 2:21 pm from the Appellant, addressed to PayrollMetroSouth and to Ms E Grant.		Respondent's disclosure from witness conferencing (Queensland Health Payroll) - Annexure A Tab 12
189	The thread contains a message dated 13 May 2024 at 8:21 am from PayrollMetroSouth, addressed to the Appellant.		Respondent's disclosure from witness conferencing (Queensland Health Payroll) - Annexure A Tab 12
190	That message of 13 May 2024 states: "I cannot see that any of the issues below have been corrected. Please speak to your Line Manager to have them corrected with an AVAC submitted through My HR as this will also be affecting your RDO balances as well as your pay."		Respondent's disclosure from witness conferencing (Queensland Health Payroll) - Annexure A Tab 12
191	The thread contains a message dated 21 May 2024 at 12:33 pm from Ms C Taylor, addressed to the Appellant, with the subject "RE: Corey Shepherd 388372 Pay issues".		Respondent's disclosure from witness conferencing (C Taylor) - Annexure A Tab 12
192	That message of 21 May 2024 states: "Just letting you know that I am still I am waiting payroll confirmation about a few of these payroll issues and as soon as I do get that confirmation, I will submit an AVAC for next pay run. I will let you know PRN once it has been submitted."		Respondent's disclosure from witness conferencing (C Taylor) - Annexure A Tab 13

No.	Fact to be admitted	Admit / Deny	Source (delete before service)
193	The Respondent's disclosure contains a message dated 28 May 2024 at 8:36 am from Ms C Taylor, addressed to the Appellant and copied to Ms T Reese, with the subject "Validation of Claims older than 3 months - Please sign".		Respondent's disclosure from witness conferencing (C Taylor) - Annexure A Tab 14
194	That message of 28 May 2024 states: "Please find attached Validation of claims older than 3 months, please sign and return to be as soon as possible so I can escalate for delegate approval."		Respondent's disclosure from witness conferencing (C Taylor) - Annexure A Tab 14
195	The myHR submissions report produced as Item 11 records seven submissions for the Appellant in the period 1 February 2024 to 31 May 2024.		myHR submissions report for the Appellant, 1 February to 31 May 2024, produced by Metro South Health as Item 11 of the notice of non-party disclosure - Annexure A Tab 15
196	That report records five of those seven submissions as an "Attendance Variation and Allowance Claim (AVAC)".		myHR submissions report for the Appellant, 1 February to 31 May 2024, produced by Metro South Health as Item 11 of the notice of non-party disclosure - Annexure A Tab 15
197	That report records the initiator of each of those five Attendance Variation and Allowance Claims as "Donovan-Taylor, Chloe".		myHR submissions report for the Appellant, 1 February to 31 May 2024, produced by Metro South Health as Item 11 of the notice of non-party disclosure - Annexure A Tab 15
198	That report records the initiator of no Attendance Variation and Allowance Claim in that period as the Appellant.		myHR submissions report for the Appellant, 1 February to 31 May 2024, produced by Metro South Health as Item 11 of the notice of non-party disclosure - Annexure A Tab 15
199	That report records a submission with process number 16328886 as an Attendance Variation and Allowance Claim submitted on 15 May 2024, with a processing date of 16 May 2024, and a status of "Completed".		myHR submissions report for the Appellant, 1 February to 31 May 2024, produced by Metro South Health as Item 11 of the notice of non-party disclosure - Annexure A Tab 15
200	That report records a submission with process number 16450619 as an Attendance Variation and Allowance Claim submitted on 28 May 2024, with an effective date of 30 March 2024, a processing date of 30 May 2024, and a status of "Part Completed".		myHR submissions report for the Appellant, 1 February to 31 May 2024, produced by Metro South Health as Item 11 of the notice of non-party disclosure - Annexure A Tab 15
201	That report records the status of every other Attendance Variation and Allowance Claim in the period as "Completed".		myHR submissions report for the Appellant, 1 February to 31 May 2024, produced by Metro South Health as Item 11 of the notice of non-party disclosure - Annexure A Tab 15

No.	Fact to be admitted	Admit / Deny	Source (delete before service)
202	That report records the following process numbers with the following submission dates: 15325947, submitted 6 February 2024; 15480560, submitted 20 February 2024; 15848692, submitted 27 March 2024; 15849573, submitted 27 March 2024; 15969838, submitted 9 April 2024; 16328886, submitted 15 May 2024; and 16450619, submitted 28 May 2024.		myHR submissions report for the Appellant, 1 February to 31 May 2024, produced by Metro South Health as Item 11 of the notice of non-party disclosure - Annexure A Tab 15
203	In that report, process numbers increase as submission dates increase.		myHR submissions report for the Appellant, 1 February to 31 May 2024, produced by Metro South Health as Item 11 of the notice of non-party disclosure - Annexure A Tab 15
204	The number 15397775 falls between 15325947 and 15480560.		Arithmetic
205	The number 15605601 falls between 15480560 and 15848692.		Arithmetic
206	The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 20(c): "any discrepancies or errors were remedied in a timely manner".		Respondent's amended statement of facts and contentions, 13 May 2026
207	That amended statement of facts and contentions states at paragraph 20(f): "there are no outstanding underpayments for the appellant".		Respondent's amended statement of facts and contentions, 13 May 2026
208	That amended statement of facts and contentions states at paragraph 21(c): "says Ms Taylor submitted the AVAC on 28 May 2024".		Respondent's amended statement of facts and contentions, 13 May 2026
209	Neither AVAC PRN 15397775 nor AVAC PRN 15605601 appears in that report.		myHR submissions report for the Appellant, 1 February to 31 May 2024, produced by Metro South Health as Item 11 of the notice of non-party disclosure - Annexure A Tab 12
PART FOUR - STRESSOR 3, INCLUDING THE ROSTERING ERRORS AND CHANGES			
L	STRESSOR 3 - THE ROSTERING ERRORS AND CHANGES, AND THE EMPLOYER'S KNOWLEDGE OF FATIGUE BEFORE 18 JUNE 2024		
210	On 26 April 2024 at 1:52 pm Ms Reese sent an email to the Appellant with the subject "Roster Concerns", referring to a meeting on 16 April 2024 at which the Appellant raised a roster line ending with night shifts followed by three days off and then returning to night shifts.		Respondent's disclosure from witness conferencing (T Reese) - Annexure A Tab 7
211	That email states that Ms Taylor "was working to fix this error and would get in touch with you about what alternative shifts she could offer".		Respondent's disclosure from witness conferencing (T Reese) - Annexure A Tab 7
212	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Ms Taylor got in touch with the Appellant about alternative shifts following the meeting of 16 April 2024.		Respondent's amended statement of facts and contentions, 13 May 2026
213	On 1 May 2024 at 1:18 pm the Appellant sent an email to Ms Reese with the subject "Re: Roster Concerns" referring to section 4, clause 10.4.1 of the Operations Manual and stating: "This section includes a toolkit required by management to manage fatigue and implement appropriate protocols and adhere to the workplace health and safety act."		Respondent's disclosure from witness conferencing (T Reese) - Annexure A Tab 7
214	That email states: "I forwarded the toolkit to Chloe last week for review and action but have yet to receive feedback".		Respondent's disclosure from witness conferencing (T Reese) - Annexure A Tab 7

No.	Fact to be admitted	Admit / Deny	Source (delete before service)
215	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Ms Taylor reviewed the toolkit referred to in that email, or provided any feedback on it, at any time before 18 June 2024.		Respondent's amended statement of facts and contentions, 13 May 2026
216	That email of Ms Reese also states: "I asked Chloe to follow upon what should be the interpretation of this section with HR".		Respondent's disclosure from witness conferencing (T Reese) - Annexure A Tab 7
217	On 8 May 2024 at 9:08 am Ms Reese replied to the Appellant stating: "Thanks for raising these observations and concerns. I am following up with regards to these with HR for further advice and I will get back to you asap with a response."		Respondent's disclosure from witness conferencing (T Reese) - Annexure A Tab 7
218	On 10 May 2024 at 2:08 pm Ms Reese sent an email to Mr Mackenzie Pritchard of Human Resources forwarding the Appellant's email of 1 May 2024, which states: "I think he is trying to raise that he has concerns over how his manager is rostering for the Switchboard team and how it is impacting on staff fatigue, or more specifically his fatigue."		Respondent's disclosure from witnesses (fatigue risk management content) - Annexure A Tab 8
219	That email states: "as per Cory's second extract detailing the Roster Risk assessment Matrix, Chloe and I have run through this and we say at best there would be a rating of 11 which is moderate".		Respondent's disclosure from witnesses (fatigue risk management content) - Annexure A Tabs 8, 9A, 9B, 11
220	That email states: "I acknowledge there has been a few rostering errors made by Chloe with regards to Cory's line in past rosters".		Respondent's disclosure from witnesses (fatigue risk management content) - Annexure A Tabs 8, 9A, 9B, 11
221	On 20 May 2024 at 4:07 pm Ms Reese sent an email to LBH_HR which states: "I am just following up on this query I raised a little while ago in relation to a email I had received from a staff member about our rostering practices. Thus if someone might be able to give me a call regarding these staff concerns, that would be great."		Respondent's disclosure from witnesses (fatigue risk management content) - Annexure A Tab 8
222	That email of Ms Reese to LBH_HR attached the document "qh-gdl-401-3.3", being the Queensland Health Fatigue Risk Management Systems Implementation Guideline.		Respondent's disclosure from witnesses (fatigue risk management content) - Annexure A Tab 8
M	STRESSOR 3 - THE BREAK OF 17-18 MARCH 2024, THE 2020 AGREEMENT, AND THE LEAVE OF 19 MARCH 2024		
223	By email dated 7 July 2026 Ms Lyndelle Forrest, Senior Consultant, Human Resources, Logan and Beaudesert Health Service, wrote to the Appellant stating that the roster "provides more than 10-hour breaks between shifts".		Email of Ms L Forrest, Senior Consultant HR, 7 July 2026 - Annexure A Tab 21
224	That email states: "acknowledge you also signed an 8 hour agreement on 17 June 2020, which allows you to work with only an 8 hour break, however this is only applied where staff initiated shift swaps have occurred."		Email of Ms L Forrest, Senior Consultant HR, 7 July 2026 - Annexure A Tab 21
225	The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 22(a): "says the shift was separated by only a 7-hour break (rather than an 8-hour break) says that this was a result of human error and not intentional or repeated".		Respondent's amended statement of facts and contentions, 13 May 2026
226	That amended statement of facts and contentions states at paragraph 22(e): "says in June 2020, the Appellant signed an agreement allowing an 8-hour break between shifts".		Respondent's amended statement of facts and contentions, 13 May 2026
227	That amended statement of facts and contentions states at paragraph 22(b): "says that the appellant could refuse shifts at anytime".		Respondent's amended statement of facts and contentions, 13 May 2026
228	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the consecutive shifts of 17 and 18 March 2024 arose from a staff initiated shift swap.		Respondent's amended statement of facts and contentions, 13 May 2026

No.	Fact to be admitted	Admit / Deny	Source (delete before service)
229	The Leave Takings Report produced by Metro South Hospital and Health Service in respect of 19 March 2024 records the Leave Category as "Sick", the Leave Type as "Sick Leave", the Time Code as "SCK", the Leave Taken as 7.60 hours, and the Leave Status as "APPROVED".		Item 15 QH Leave Takings Report, produced by Metro South Health - Annexure A Tab 16
230	The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 24(a): "says that the appellant took leave on 19 March 2024 but says this was paid leave".		Respondent's amended statement of facts and contentions, 13 May 2026
231	That amended statement of facts and contentions states at paragraph 24(b): "says that pursuant to clause 18.10 of the Award, the appellant is not entitled to fatigue leave, because he was not performing overtime".		Respondent's amended statement of facts and contentions, 13 May 2026
232	That amended statement of facts and contentions states at paragraph 27: "The respondent contends that any management action involved in the causation of any injury to the Plaintiff was reasonable management action taken in a reasonable way pursuant to s 32(5) WCRA."		Respondent's amended statement of facts and contentions, 13 May 2026
233	Review Decision 69983 records that the policy regarding fatigue leave following weekends and rostered days off is dated June 2020.		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision - Annexure A Tab 25
234	That decision records: "The policy notes that many problems can be overcome regarding fatigue leave by either not rostering the employee who is on call for the first shift of the following day and not rostering on call an officer who is rostered for the first shift on the following day."		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision - Annexure A Tab 25
235	That decision records that section 23 of the Hospital and Health Service General Employees (Queensland Health) Award provides that "where an employee is in receipt of the additional week's leave as prescribed in clause 19.2(a) and is rostered off on Easter Saturday, Easter Sunday, Show Day or Labour Day, such employee shall be paid an additional day's wage or be granted a day's holiday in lieu at a time to be mutually arranged, but this is not applicable where an employee is not ordinarily required to work on a Saturday or Sunday".		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision - Annexure A Tab 25
N	STRESSOR 3 - THE FATIGUE LEAVE REQUEST OF 8 APRIL 2024, THE DELAY, AND THE REFUSAL OF 1 MAY 2024		
236	Review Decision 69983 records: "You emailed Ms Taylor on 8 April 2024 and requested a review of your payment for the pay period between 8 March 2024 and 31 March 2024."		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision - Annexure A Tab 25
237	That decision records that in that email the Appellant "noted the Hospital and Health Service General Employees (Queensland Health) Award stipulated in part 5 section 15 that unless there was a mutual agreement of regular rosters, employees were entitled to a minimum 10-hour break".		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision - Annexure A Tab 25
238	That decision records that Ms Taylor replied on 9 April 2024 and "added she also escalated your enquiry regarding fatigue leave to Human Resources to confirm policies around this".		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision - Annexure A Tab 25
239	That decision records that in the same reply Ms Taylor "proceeded to acknowledge the importance of communication and requested that you raise your concerns with her as soon as they arise so she could action them sooner for you".		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision - Annexure A Tab 25
240	That decision records that on 24 April 2024 the Appellant emailed Ms Taylor and "expressed your dissatisfaction with the process and that it had been more than 2 weeks without any response or overtime payment".		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision - Annexure A Tab 25
241	That decision records: "Ms Taylor responded to your email on 1 May 2024 via email and stated that after a consultation with payroll and Human Resources, your request for fatigue payment for 18 March 2024 would not be processed due to the existing 8-hour agreement signed by you on 17 June 2020."		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision - Annexure A Tab 25

No.	Fact to be admitted	Admit / Deny	Source (delete before service)
242	That decision records, of the same email of 1 May 2024: "However, she noted you are able to terminate this agreement going forward."		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision - Annexure A Tab 25
243	The period between the Appellant's email of 8 April 2024 and Ms Taylor's response of 1 May 2024 is 23 days.		Arithmetic
244	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any response was made to the Appellant's enquiry regarding fatigue leave at any time between 9 April 2024 and 1 May 2024.		Respondent's amended statement of facts and contentions, 13 May 2026
245	Review Decision 69983 records the Appellant's response of 9 August 2024 as stating that the break between the shifts of 17 and 18 March 2024 "did not include travel time", and: "If you factored in travel time, your break between shifts would have been less than 5 hours."		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision - Annexure A Tab 25
246	That decision records the employer's response of 6 September 2024 as confirming "you did not formally rescind the 8-hour agreement signed by you on 17 June 2020 and the change to your employment contract and adjustments in your working hours did not automatically invalidate the agreement".		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision - Annexure A Tab 25
247	That decision records: "The employer did not mention your shift on 18 March 2024."		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision - Annexure A Tab 25
248	That decision states: "In considering the evidence, I find there was uncertainty between you and the employer regarding whether the 8-hour agreement continued to apply."		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision - Annexure A Tab 25
249	That decision records that payroll was, as at 1 May 2024, "still reviewing your entitlements regarding public holidays not required arising while you were a part-time employee".		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision - Annexure A Tab 25
250	That decision records Ms Taylor as confirming "that since your commencement of full-time employment, all payments for public holidays not required had been processed".		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision - Annexure A Tab 25
O	STRESSOR 3(d) - THE RESPONDENT'S OWN REVIEW DECISION OF 24 OCTOBER 2024		
251	Review Decision 69983 dated 24 October 2024 records that in its response the employer included an extract of the Hospital and Health Services General Employees (Queensland Health) Award which "stated that employees must be provided with a break of not less than 10 hours between the termination of one shift and the commencement of another shift, and 8 hours applied instead of 10 only in specific circumstances".		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision - Annexure A Tab 25
252	That decision states: "The break between the shift on 17 March 2024 and 18 March 2024 equated to 7 hours."		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision - Annexure A Tab 25
253	That decision states: "Even if you were allowed to leave early on 17 March 2024 as suggested by the employer, you left a maximum of 30 minutes early, which meant you still did not receive a minimum 8-hour break."		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision - Annexure A Tab 25
254	That decision states: "Based on this, I find the rostering of these two shifts amounted to unreasonable management action given that it was in direct contradiction to the award and the 8-hour agreement."		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision - Annexure A Tab 25
255	That decision states, under the heading "Conclusion": "you sustained a personal injury of a psychological nature".		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision - Annexure A Tab 25

No.	Fact to be admitted	Admit / Deny	Source (delete before service)
256	That decision states, under the heading "Conclusion": "your injury arose out of employment, to the extent that it arose out of factors 2, 3 and 4, where employment was a significant contributing factor".		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision - Annexure A Tab 25
P	THE EMPLOYER'S OWN STATEMENTS ABOUT ITS SYSTEMS AND RECORDS		
257	By letter dated 5 June 2026, reference K-LM26/729, signed by Ms Noelle Cridland as Chief Executive of Metro South Hospital and Health Service and addressed to Commissioner Dwyer, Metro South Health stated in relation to Item 4: "the requested documents do not exist. Mandatory Fatigue Risk Management System training only applies to health practitioners and clinical assistants. The Logan Hospital Switchboard staff are non-clinical staff, and therefore there is no mandatory requirement for them to complete Fatigue Risk Management System training."		Letter of Metro South Health, 5 June 2026 (ref K-LM26/729) - Annexure A Tab 20
258	That letter states in relation to Item 5: "The implementation of fatigue risk management assessment at Switchboard Logan Hospital occurred after 30 June 2024 in connection with an organisational change related to the reporting lines for Switchboard."		Letter of Metro South Health, 5 June 2026 (ref K-LM26/729) - Annexure A Tab 20
259	That letter states in relation to Item 7: "the requested documents do not exist. Mandatory Fatigue Risk Management System training only applies to health practitioners and clinical assistants."		Letter of Metro South Health, 5 June 2026 (ref K-LM26/729) - Annexure A Tab 20
260	That letter states in relation to Item 3(c): "there have been no 'consequential' changes to operating procedures over the period requested."		Letter of Metro South Health, 5 June 2026 (ref K-LM26/729) - Annexure A Tab 20
261	That letter states in relation to Item 3(a): "All employee complaints relating to Logan Hospital Switchboard operational errors are made directly to the Line Manager of Switch Board and managed solely via email or verbally with the complainant."		Letter of Metro South Health, 5 June 2026 (ref K-LM26/729) - Annexure A Tab 20
262	That letter states in relation to Items 1 and 2: "a spreadsheet of recorded MET calls is available for the period 17-18 March 2024."		Letter of Metro South Health, 5 June 2026 (ref K-LM26/729) - Annexure A Tab 20
PART FIVE - GENERAL: THE RECORD, THE ADMISSIONS AND THE MATTERS NOT ALLEGED			
Q	MATTERS NOT DONE, AND MATTERS NOT AVAILABLE		
263	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any fatigue risk assessment was conducted in respect of the Appellant's position at any time before 30 June 2024.		Respondent's amended statement of facts and contentions, 13 May 2026
264	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any fatigue risk management training was provided to the Appellant in respect of his position at any time before 30 June 2024.		Respondent's amended statement of facts and contentions, 13 May 2026
265	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that fatigue risk management assessment was implemented at Logan Hospital Switchboard at any time before 30 June 2024.		Respondent's amended statement of facts and contentions, 13 May 2026
266	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any change was made to the operating procedures of Logan Hospital Switchboard as a consequence of any employee complaint over the period 1 December 2023 to 30 June 2024.		Respondent's amended statement of facts and contentions, 13 May 2026
267	No document recording consultation with Switchboard operators before the change communicated by the email of 15 April 2024 has been identified or disclosed in the Respondent's disclosed material presently before the Commission.		Respondent's amended List of Documents (Form 23) dated 14 August 2026
R	THE APPELLANT'S CONTEMPORANEOUS ACCOUNT, AND THE DOCUMENTS THE RESPONDENT LISTS		

No.	Fact to be admitted	Admit / Deny	Source (delete before service)
268	The Respondent's amended List of Documents dated 14 August 2026 lists at item 12 an email from the Appellant to WorkCover Queensland dated 12 July 2024 with the attachment described as "Event overview - undated".		Respondent's amended List of Documents (Form 23) dated 14 August 2026
269	That amended List of Documents lists at item 14 an email from the Appellant to WorkCover Queensland dated 18 July 2024 with the attachment described as "Witness statement - Carolyn Jeffrey".		Respondent's amended List of Documents (Form 23) dated 14 August 2026
270	That amended List of Documents lists at item 16 an email from Ms Carolyn Jeffrey to WorkCover Queensland dated 1 August 2024 described as a follow up statement.		Respondent's amended List of Documents (Form 23) dated 14 August 2026
271	That amended List of Documents lists at item 25 an email from the Appellant to WorkCover Queensland dated 29 August 2024 described as regarding the after hours on call change, with the attachment described as "Email: After hours on call process".		Respondent's amended List of Documents (Form 23) dated 14 August 2026
272	That amended List of Documents lists at item 26 an email from the Appellant to WorkCover Queensland dated 30 August 2024 described as regarding failure to consult, with the attachment described as "Email: Task change switchboard - 19/04/2024".		Respondent's amended List of Documents (Form 23) dated 14 August 2026
273	That amended List of Documents lists at item 27 an email from the Appellant to WorkCover Queensland dated 30 August 2024 described as regarding failure to consult, with the attachment described as "Email: MASPER process - 09/05/2024".		Respondent's amended List of Documents (Form 23) dated 14 August 2026
274	The Appellant provided the document described at item 12 to WorkCover Queensland on 12 July 2024.		As above; and the Appellant's email of that date
275	The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 11: "The respondent does not admit the allegations in stressor 1(a) of the appellants statement, because there are no particulars or details to respond to."		Respondent's amended statement of facts and contentions, 13 May 2026
276	On 11 August 2026 the Appellant served on the Respondent a bundle titled "Stressor 1(a) - Particulars support bundle", comprising 30 pages and six tabs, each stating a particular of Stressor 1(a) of the Amended Form 9A and enclosing the documents recording it.		The bundle, and the Appellant's covering email of 11 August 2026
S	FACTS ALREADY ADMITTED BY THE RESPONDENT IN THIS PROCEEDING ON 18 FEBRUARY 2026		
277	On 18 February 2026 the Respondent, by Ms Renee Matheson, Senior Appeals Officer, signed and served on the Appellant a response to the Appellant's notice to admit facts in this proceeding.		Respondent's response to the Appellant's notice to admit facts, signed by Ms R Matheson, Senior Appeals Officer, 18 February 2026 - Annexure A Tab 27; the notice to which it responds is at Annexure A Tab 26
278	In that response the Respondent admitted paragraph 1 of that notice, being: "On 17-18 March 2024, the Appellant was rostered to finish work at 23:00 and commence his next shift at 06:00, resulting in a break of only 7 hours."		Respondent's response to the Appellant's notice to admit facts, signed by Ms R Matheson, Senior Appeals Officer, 18 February 2026 - Annexure A Tab 27; the notice to which it responds is at Annexure A Tab 26
279	In that response the Respondent admitted paragraph 3 of that notice, being: "The Employer's 'Fatigue Risk Management Policy' and the relevant Award require a minimum break of 10 hours between shifts, or 8 hours by written agreement."		Respondent's response to the Appellant's notice to admit facts, signed by Ms R Matheson, Senior Appeals Officer, 18 February 2026 - Annexure A Tab 27; the notice to which it responds is at Annexure A Tab 26

No.	Fact to be admitted	Admit / Deny	Source (delete before service)
280	In that response the Respondent denied paragraph 4 of that notice, on the stated ground: "because in June 2020, the Appellant signed an agreement allowing an 8 hour break between shifts".		Respondent's response to the Appellant's notice to admit facts, signed by Ms R Matheson, Senior Appeals Officer, 18 February 2026 - Annexure A Tab 27; the notice to which it responds is at Annexure A Tab 26
281	In that response the Respondent admitted paragraph 5 of that notice, being that Ms Reese stated in an email dated 7 August 2023: "I do realise in this instance there was a rostering error that was accidentally made by Chloe with regards to night shifts".		Respondent's response to the Appellant's notice to admit facts, signed by Ms R Matheson, Senior Appeals Officer, 18 February 2026 - Annexure A Tab 27; the notice to which it responds is at Annexure A Tab 26
282	In that response the Respondent admitted "that Ms Taylor removed a page from the workplace communications book", and did not admit that the page contained the Appellant's handwriting "because the respondent does not have a copy of the page".		Respondent's response to the Appellant's notice to admit facts, signed by Ms R Matheson, Senior Appeals Officer, 18 February 2026 - Annexure A Tab 27; the notice to which it responds is at Annexure A Tab 26
283	In that response the Respondent admitted paragraph 8 of that notice, being: "Maintaining accurate contact details for medical staff is a critical function of the Switchboard to ensure effective clinical handover and patient safety."		Respondent's response to the Appellant's notice to admit facts, signed by Ms R Matheson, Senior Appeals Officer, 18 February 2026 - Annexure A Tab 27; the notice to which it responds is at Annexure A Tab 26
284	In admitting that paragraph the Respondent added: "and says that there was a procedure in place for this to occur".		Respondent's response to the Appellant's notice to admit facts, signed by Ms R Matheson, Senior Appeals Officer, 18 February 2026 - Annexure A Tab 27; the notice to which it responds is at Annexure A Tab 26
285	In that response the Respondent denied paragraph 9 of that notice on the stated ground: "because there was already a procedure in place".		Respondent's response to the Appellant's notice to admit facts, signed by Ms R Matheson, Senior Appeals Officer, 18 February 2026 - Annexure A Tab 27; the notice to which it responds is at Annexure A Tab 26
286	In that response the Respondent admitted paragraph 14 of that notice, being that in an email to Ms Reese dated 6 June 2023 Ms Taylor stated: "I did raise my voice and asked him to please stop talking over the top of me."		Respondent's response to the Appellant's notice to admit facts, signed by Ms R Matheson, Senior Appeals Officer, 18 February 2026 - Annexure A Tab 27; the notice to which it responds is at Annexure A Tab 26

No.	Fact to be admitted	Admit / Deny	Source (delete before service)
287	In that response the Respondent admitted that the Union Encouragement Policy QH-POL-248 "says words to that effect", the effect pleaded being that the Policy "requires managers to take a 'positive, supportive role' to facilitate union membership and delegate elections".		Respondent's response to the Appellant's notice to admit facts, signed by Ms R Matheson, Senior Appeals Officer, 18 February 2026 - Annexure A Tab 27; the notice to which it responds is at Annexure A Tab 26
288	In that response the Respondent admitted "that the Appellant sent a text to Ms Taylor at 5.03pm that he was 'just putting his hand up'", and said that this was not a formal notification.		Respondent's response to the Appellant's notice to admit facts, signed by Ms R Matheson, Senior Appeals Officer, 18 February 2026 - Annexure A Tab 27; the notice to which it responds is at Annexure A Tab 26
289	In that response the Respondent admitted "the contents of the Respondent's review unit decision", and said that this fact is not relevant because the appeal is a hearing de novo.		Respondent's response to the Appellant's notice to admit facts, signed by Ms R Matheson, Senior Appeals Officer, 18 February 2026 - Annexure A Tab 27; the notice to which it responds is at Annexure A Tab 26
290	In that response the Respondent admitted paragraph 40 of that notice, being the instruction of Ms E Grant of Payroll of 3 May 2024.		Respondent's response to the Appellant's notice to admit facts, signed by Ms R Matheson, Senior Appeals Officer, 18 February 2026 - Annexure A Tab 27; the notice to which it responds is at Annexure A Tab 26
291	In that response the Respondent admitted "the fact that Ms Taylor submitted the AVAC on 28 May 2024".		Respondent's response to the Appellant's notice to admit facts, signed by Ms R Matheson, Senior Appeals Officer, 18 February 2026 - Annexure A Tab 27; the notice to which it responds is at Annexure A Tab 26
292	In that response the Respondent admitted paragraph 46 of that notice, being the email of Ms Taylor of 21 May 2024 stating that she was waiting for payroll confirmation and would submit an AVAC for the next pay run.		Respondent's response to the Appellant's notice to admit facts, signed by Ms R Matheson, Senior Appeals Officer, 18 February 2026 - Annexure A Tab 27; the notice to which it responds is at Annexure A Tab 26
293	In that response the Respondent denied paragraphs 42 to 45 of that notice on the stated grounds: "because the comparator used does not represent a true comparator in the circumstances and because the roster was equitable".		Respondent's response to the Appellant's notice to admit facts, signed by Ms R Matheson, Senior Appeals Officer, 18 February 2026 - Annexure A Tab 27; the notice to which it responds is at Annexure A Tab 26
T	MATTERS THE RESPONDENT DOES NOT ALLEGE		
294	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Appellant was subject to any disciplinary process at any time before 18 June 2024.		Respondent's amended statement of facts and contentions, 13 May 2026

No.	Fact to be admitted	Admit / Deny	Source (delete before service)
295	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Appellant's work performance was the subject of any formal performance management process at any time before 18 June 2024.		Respondent's amended statement of facts and contentions, 13 May 2026
296	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not describe any communication with the Appellant before 18 June 2024 as a warning, or as part of a disciplinary or performance management process.		Respondent's amended statement of facts and contentions, 13 May 2026
297	Paragraph 27 of the Respondent's amended statement of facts and contentions dated 13 May 2026 does not identify, by particular, date, document or cross-reference, the management action relied upon for the contention in that paragraph.		Respondent's amended statement of facts and contentions, 13 May 2026

Cory Lea Shepherd
Appellant (self-represented) | [date]

SCHEDULE B - DOCUMENTS

Authenticity to be admitted | *Industrial Relations (Tribunals) Rules 2011, rule 49*

WHY THIS SCHEDULE EXISTS - internal note, delete before service. Rule 49(1) permits a party to ask another party to admit "the facts **or documents** stated in the notice", and rule 49(2) deems admission if the other party does not within 14 days serve a notice disputing "the facts **or the authenticity of the documents**". Admitted authenticity means each document below can be tendered at the hearing without being formally proved. For a self-represented appellant that removes a whole category of work and a whole category of objection.

TAKE NOTICE that the Appellant also asks the Respondent to admit, for this proceeding only, the authenticity of the documents specified below, and that if the Respondent does not within 14 days after receiving this notice serve a notice on the Appellant disputing the authenticity of those documents, the Respondent is taken to admit their authenticity for this proceeding only.

No.	Document	Date	Authenticity admitted / disputed
1	Email, the Appellant to Ms C Taylor, Ms T Reese, Ms P Conaghan and Ms T Smith, "Increase of hours and Workplace issues"	7 August 2023, 12:21 pm	
2	Email, Ms C Taylor to the Appellant, reply in the same chain	7 August 2023, 1:43 pm	
3	Email, Ms T Reese to the Appellant, reply in the same chain	7 August 2023, 3:13 pm	
4	Email, Ms T Reese to Ms C Taylor, with attachment "Rostered shifts Cory S. past 8 months.xlsx"	7 August 2023, 5:11 pm	
5	Email, Ms T Reese to the Appellant, attaching HR Policy E12 - Individual Employee Grievances	29 August 2023	
6	Document, the Appellant to Ms C Taylor, "Request to Increase Working Hours to Full Time Rotational Roster"	31 August 2023	
7	Email, the Appellant to Ms T Reese, with attached draft roster	4 September 2023	
8	Email, Ms T Reese to the Appellant	8 September 2023, 11:42 am	
9	Email, Ms C Taylor to the Appellant, "Approved - Permanent Full Time FTE"	27 September 2023, 1:52 pm	
10	Email, Ms C Taylor to Logan Switch and Switchboard staff, "Afterhours Oncall Process - Switchboard"	15 April 2024, 12:39 pm	
11	Email, Ms T Reese to the Appellant, "Roster Concerns"	26 April 2024, 1:52 pm	
12	Email, the Appellant to Ms T Reese, "Re: Roster Concerns"	1 May 2024, 1:18 pm	
13	Email, Ms T Reese to the Appellant, "RE: Roster Concerns"	8 May 2024, 9:08 am	
14	Email, Ms T Reese to Mr M Pritchard, "FW: Roster Concerns", with attachment "qh-gdl-401-3.3"	10 May 2024, 2:08 pm	
15	Email, Ms C Taylor to the Appellant, "Sick leave 14.05.24"	14 May 2024, 12:08 pm	
16	Email, Ms S Marriott to Logan Switch, "Respiratory Nurse Educators"	15 May 2024, 11:47 am	
17	Email, Ms C Taylor to Logan Switch and Switchboard staff, "Switchboard Manager - On call and Hours."	17 May 2024, 9:30 am	
18	Email, Ms C Taylor to Ms A McNamee, "FW: Office Hours and Departmental Directives"	17 May 2024, 1:20 pm	
19	Email, Ms S Marriott to Logan Switch, "FW: Respiratory Nurse Educators"	20 May 2024, 11:03 am	
20	Email, the Appellant (Logan Switch) to Ms C Taylor, "FW: Respiratory Nurse Educators"	20 May 2024, 2:05 pm	
21	Email, Ms C Taylor to the Appellant, "RE: Respiratory Nurse Educators"	20 May 2024, 4:30 pm	

No.	Document	Date	Authenticity admitted / disputed
22	Email, Ms T Reese to LBH_HR, "FW: Roster Concerns"	20 May 2024, 4:07 pm	
23	Letter, Metro South Hospital and Health Service to Commissioner Dwyer, reference K-LM26/729, signed by Ms N Cridland, Chief Executive	5 June 2026	
24	Document, QH Leave Takings Report for the Appellant, produced by Metro South Health as item 15 of the Notice of non-party disclosure	19 March 2024	
25	Email, Ms L Forrest, Senior Consultant Human Resources, Logan and Beaudesert Health Service, to the Appellant	7 July 2026	
26	Review Decision 69983, Workers' Compensation Regulator	24 October 2024	
27	Role description, Administration Officer, Switchboard Services (AO3), Logan Hospital	undated	
28	Email thread, "Corey Shepherd 388372 Pay issues" - PayrollMetroSouth to Ms C Taylor copied to the Appellant; the Appellant to Payroll; Payroll to the Appellant; Ms C Taylor to the Appellant	3 to 21 May 2024	
29	Email, Ms C Taylor to the Appellant copied to Ms T Reese, "Validation of Claims older than 3 months - Please sign"	28 May 2024, 8:36 am	
30	myHR submissions report for the Appellant, produced by Metro South Health as Item 11	1 February to 31 May 2024	
31	Movement forms recording approved changes to working hours, approved by Mr S Hughes as delegate	27 February, 17 April and 9 June 2026	
32	Consultation Paper - Proposed Rosters for Switchboard Services, Logan Hospital, Metro South Health	November 2024	
33	Consultation outcome - Proposed Rosters for Switchboard Services, Logan Hospital, Metro South Health	December 2024	
34	Email, Mr H Moran, Organiser, Together Queensland, to Ms C Jeffrey, Ms P Conaghan and the Appellant, "Switchboard Roster Feedback - For Delegates"	3 November 2025, 10:57 am	
35	Email chain, "Office Hours and Departmental Directives" - the Appellant to Ms C Taylor and Logan Switch copied to Switchboard staff, Ms T Reese and LBH_HR; the reply of Ms Reese; the reply of the Appellant	15 May 2024	
36	Email, Ms T Reese to the Appellant, "RE: Office Hours and Departmental Directives"	21 May 2024, 2:53 pm	
37	Email, Ms C Taylor to Ms A McNamee, "FW: Office Hours and Departmental Directives"	17 May 2024, 1:20 pm	
38	Document, Fatigue risk management systems - Implementation guideline QH-GDL-401-3.3:2021, being the attachment to the email of Ms T Reese of 10 May 2024	2021	
39	MASPER register email records - Ms Taylor to Vivian Kwok, MASPER Registrar, and Dr Wong, "RE: Switchboard issues 5 May, 7 May, and 8 May"; Ms Taylor to Logan Switch and Switchboard staff, "MASPER process"; and the underlying switchboard issue logs of 2 to 8 May 2024	9 May 2024 (issues logged 2-8 May 2024)	
40	Email, Ms E Stibbard to the Appellant and the Switchboard team, "Hello & Update"	18 July 2023, 12:56 pm	
41	Respondent's response to the Appellant's notice to admit facts, signed by Ms R Matheson, Senior Appeals Officer	18 February 2026	
42	myHR leave request history for Process Reference 15480560, produced by Metro South Health as Item 11 of the notice of non-party disclosure	20 February to 1 March 2024	

No.	Document	Date	Authenticity admitted / disputed
43	Instrument of Human Resource Sub-Delegation, COVID-19 Pandemic Event - Paid Special Pandemic Leave, signed by Ms N Cridland, produced as Item 13	effective 5 December 2022	

Cory Lea Shepherd
Appellant (self-represented) | [date]

Covering email - to accompany service

To: Renee.Matheson@oir.qld.gov.au Cc: the OIR appeals registry
Subject: WC/2024/227 - Shepherd - notice to admit facts and documents

Dear Ms Matheson,

I attach a notice to admit facts and documents under rule 49 of the *Industrial Relations (Tribunals) Rules 2011*.

Schedule A sets out facts. Schedule B sets out documents, and asks that their authenticity be admitted. The documents are those already exchanged between the parties or listed in the Respondent's amended List of Documents dated 14 August 2026.

Copies of the following are enclosed, as they may not be in the Respondent's possession: the email of Ms L Forrest dated 7 July 2026; the QH Leave Takings Report for 19 March 2024; the myHR submissions report for 1 February to 31 May 2024; and the Stressor 1(a) particulars bundle served on 11 August 2026. I am content to provide a copy of any other document listed.

Kind regards,

Cory Lea Shepherd

Appellant (self-represented), WC/2024/227

NOTHING FURTHER. No argument, no explanation of why the notice is being served, no reference to the Further Directions Order, the withdrawn application, the report or settlement. A notice to admit speaks for itself and any covering commentary only gives something to respond to. The offer to provide copies is included because it removes the "does not have a copy" answer in advance.